

CONSUMER BUILDING GUIDE

YOUR CONTRACTOR MUST GIVE YOU THIS GUIDE BEFORE YOU SIGN A CONTRACT PRICED AT OR OVER \$20,000

This guide has been developed by the QBCC in accordance with Schedule 1B of the *Queensland Building and Construction Commission Act 1991* ('the Act') to assist home owners undertaking domestic building work with a contract price of \$20,000 or more. **NOTE:** Unless otherwise stated, section references in this guide (e.g. s33) refer to provisions in Schedule 1B of the Act.

QBCC LICENCE

You should **only deal with a QBCC-licensed contractor**. If you engage an unlicensed contractor, your building work may not be covered under the Queensland Home Warranty Scheme. **Before committing, check the contractor's licence and history via the QBCC Online Licence Search or by calling the QBCC.**

WARNING – COST PLUS AND CONSTRUCTION MANAGEMENT CONTRACTS

QBCC strongly recommends home owners obtain formal legal advice before signing either of these types of contracts which increase your legal risk, reduce your Home Warranty Scheme protection and often result in disputes and cost overruns.

CONTRACT PRICE (s2)

For contracts priced at \$20,000 or more, the contract price, if fixed, must be shown prominently on the first page of the contract schedule. If the contract price is not fixed, the method for calculating it, including any allowances, must be stated in the contract schedule. Allowances (items or services for which the price is not fixed when the contract is signed) should be kept to a minimum as the final cost often exceeds the estimate in the contract. The contract must also contain a warning about any provisions that may alter the contract price. Refer to warning, page 1 of contract schedule.

COOLING-OFF PERIOD (ss35-39)

You may withdraw from the contract within 5 business days after the day you receive copies of both the signed contract (including any plans and specifications) and this guide. However, there are costs for home owners in withdrawing (generally \$100 plus any out-of-pocket expenses reasonably incurred by the contractor up to the time of withdrawal). You must advise the contractor in writing that you are withdrawing under the cooling-off provisions in section 35 of Schedule 1B of the QBCC Act.

QLD HOME WARRANTY SCHEME

Residential construction work valued at more than \$3,300 is covered by the Qld Home Warranty Scheme. The Scheme provides protection for home owners against non-completion, defective work and subsidence for up to 6 years from completion, provided a licensed contractor performs the work. The building contractor must collect the premium from the owner and pay it to the QBCC within 10 business days after the date the contract was entered into or before the contracted work is started (whichever is earlier). You should receive an email with a Notice of Cover and links to important information within 2 weeks of signing the contract.

DEPOSITS AND PROGRESS PAYMENTS (ss33,34)

The maximum deposit allowed (before work starts on site) is:

- 10% where the total contract price is less than \$20,000
- 5% where the price is \$20,000 or more
- 20% for a contract of any price where the value of the work to be performed off-site is more than 50% of the contract price.

After the deposit is paid, owners and contractors are free to choose the number and timing of progress payments (if any) for their project, provided the amount claimed is directly related to work progress on site and proportionate to (or less than) the value of the work that relates to the claim (e.g. You should not pay 50% until at least half of the work is completed on site).

COMMENCEMENT NOTICE (s16)

For contracts priced at \$20,000 or more, the contractor must give the owner a signed Commencement Notice within 10 business days of work commencing on site. The Notice must state the date work started on site and the Date for Practical Completion.

BUILDING APPROVALS AND INSPECTIONS (ss124A, 143A, 143B of the *Building Act 1975*)

Building approvals and inspections are the responsibility of a building certifier who may be engaged by you or, more commonly, your builder. Mandatory building inspections may be required at certain stages of construction. If your contractor has engaged a building certifier for certain certification functions, you can ask the certifier (via a notice given to your contractor) to perform additional certifying functions which will be at your expense and must be carried out by the certifier within agreed timeframes.

The contractor must give you copies of any certificates of inspection as soon as practicable after they receive them from the certifier. You can also ask the certifier, by written notice, for copies of any inspection documentation and the certifier must provide the documents within 5 business days. You can check a certifier's licence via QBCC's OnLine Licence Search.

For more information on additional inspections, go to www.business.qld.gov.au search 'Form 18 Notice to owner' and read the Appendix to this form. .

VARIATIONS (ss40,41)

Any change to the materials used or work to be performed under the contract is known as a 'variation'. Variations are frequently the cause of cost overruns and building disputes. **All variations must be agreed in writing by the home owner before the variation work commences** and any price increase due to the variation can not be required to be paid until the variation work is started.

DISPUTE PREVENTION

To reduce the risk of a dispute, carefully check and be sure you understand the contract, including any plans and specifications, before signing. Discuss any questions with your contractor and seek independent legal advice if you still have concerns. Once construction starts, maintain regular communication and, where possible, site inspections with your contractor and pay promptly when required under the contract.

DISPUTE RESOLUTION

If a dispute with your contractor occurs, firstly advise them in writing giving them a reasonable time to respond. If this doesn't resolve the problem, explore QBCC's free Early Dispute Resolution (EDR) service and your legal options. A QBCC letter advising the outcome of the QBCC dispute resolution process is required before you can commence a QCAT application. **QBCC recommends you obtain independent legal advice before terminating the contract.** **WARNING: Incorrect termination may have serious legal and financial consequences and reduce your protection under the Qld Home Warranty Scheme.**

EXTENSIONS OF TIME (EOTs) (s42)

The contract must state the Date for Practical Completion for your project, or how the date is to be determined (e.g. 180 days from commencement). The Act sets out circumstances in which a contractor may seek to extend this date (e.g. if you cause a delay, approve a variation to the contract which involves extra work, or the work is interrupted by more rain than could reasonably have been anticipated). The contractor must give you a written EOT claim which you should carefully consider (not unreasonably reject) and respond to promptly in writing. If you approve the claim, the Date for Practical Completion will be extended by the period claimed. If you do not approve the claim, the extension is deemed 'disputed'.

LIQUIDATED DAMAGES (LDs)

LDs are contractual payments to compensate a home owner for extra costs/losses they are likely to incur (e.g. extra rental costs) if the contractor fails to complete the work within the time allowed for in the contract (after allowing for legitimate extensions of time). Carefully consider what, if any, LD amount is appropriate for your project and ensure it is recorded in the contract.

PRACTICAL COMPLETION (PC) AND HANDOVER (See definitions of 'PC' & 'defects documents' - s1)

You are not required to pay the final contract payment until all of the contracted work has been completed in accordance with the contract including any plans and specifications, all legal requirements, and either without any defects or omissions, or with only minor defects or minor omissions that will not unreasonably affect occupation. If you believe there are any minor defects or minor omissions, the contractor must give you a 'defects document' (listing agreed and non-agreed matters). This document should be compiled by you and the contractor during a handover inspection. Check your contract to see if it imposes any extra requirements on the contractor for practical completion.

WARNING: Strict timeframes apply for notifying QBCC about defects. For more information please refer to the Regulatory Guide on the following QBCC website address qbcc.build/rectify-building-work

IMPLIED WARRANTIES (ss19-29)

Schedule 1B of the Act sets out statutory warranties which are deemed to be part of all regulated domestic building contracts, even if not stated in the contract. The warranty period is 6 years from completion, termination or cessation of the work for breaches resulting in structural defects; 1 year for all other breaches. Legal proceedings for any breach must be started within the warranty period or a further 6 months if the breach becomes apparent within the last 6 months of the warranty period.

FOR FURTHER INFORMATION

- Read the booklet, '*Domestic Building Contracts – General Information for owners and contractors*' on the QBCC website.
- Refer to the relevant legislation: Schedule 1B of the QBCC Act and ss124A, 143A and 143B of the *Building Act 1975*.

QUICK CHECKLIST (Ensure you are able to tick all relevant boxes below before signing the contract)

- ☐ I have read and **checked all contract documents**, including the contract schedule, general conditions and special conditions (if any) and any plans and specifications. **(DO NOT SIGN THE CONTRACT before receiving these documents)**
- ☐ I have **checked the building contractor's licence** and licence history on the QBCC Online Licence Search
- ☐ I note and **understand my cooling-off rights** (including how and when I may withdraw from the contract if I choose to)
- ☐ I have **checked the total contract price** (including what proportion is comprised of allowances) and I **understand the deposit and progress payments** set out in the contract schedule and when they must be paid
- ☐ I have **checked the start and finish dates and practical completion requirements** in the contract
- ☐ (If applicable) I have **discussed my questions/concerns about the contract with a practising solicitor**

OWNER'S ACKNOWLEDGEMENT

Complete and sign the section below to acknowledge that you have received this guide from your building contractor. Once signed, the building contractor will return a copy of this guide to you. You should refer to it from time to time.

NAME(S):

SIGNATURE(S):

DATE:

For further building information visit qbcc.qld.gov.au or call QBCC on 139 333.

BASIC WORKS CONTRACT (RESIDENTIAL)**SCHEDULE****OWNER:** Shishir kaji shrestha ; **SITE:** 18 Frank Street Kirwan QLD 4817**CONTRACTOR:** Thomas K Ingram**ITEM 1 - CONTRACT PRICE** (GST inclusive) (Clause 1)

(a) Building works component (including Prime Cost Items and Provisional Sums)(GST inclusive)	\$53,960.50
(b) QBCC Home Warranty Insurance Premium (where applicable)	\$571.65
Contract Price ((a) + (b))(GST inclusive)	\$54,532.15

NOTE: The **Contract Price** does not include amounts payable directly by the **Owner** to a third party but does include the **Deposit** and allowances for **Prime Cost Items** and **Provisional Sums**.

WARNING:

The **Contract Price** is subject to change, either increasing or decreasing.
A brief explanation of the effect of the Clauses allowing for changes to the **Contract Price** are set out below:

(a) *Clauses that may reduce the **Contract Price**:*

- i. Clause 3.4 - where the actual cost of a **Prime Cost Item** or a **Provisional Sum** is less than the total amount allowed for the item in the **Contract**;

(b) *Clauses that may reduce or increase the **Contract Price**:*

- i. Clause 12 - where a **Variation** to the **Works** is agreed between the parties;

(c) *Clauses that may increase the **Contract Price**:*

- i. Clause 3.5 - where the actual cost of a **Prime Cost Item** or a **Provisional Sum** is more than the total amount allowed for the item in the **Contract**;
- ii. Clause 6.7 - where access to the **Site** by the **Contractor** is impeded by any reason beyond the control of the **Contractor** resulting in the **Contractor** incurring additional costs to obtain sufficient access to the **Site**;
- iii. Clause 13.6 - where the **Owner** has failed to pay the **Contractor** an amount due under the **Contract** by the due date for payment, the **Contractor** is entitled to interest on the outstanding amount and any debt collection costs incurred;
- iv. Clause 17.2 - where the **Owner** is not a **Resident Owner** and the **Contractor** is entitled to lodge a caveat or mortgage over the **Land** and incurs stamp duty, the **Contractor** is entitled to be paid the amount of any stamp duty and registration fees incurred.

ITEM 2 - OWNER (Clause 1)

Name 1	Shishir kaji shrestha
Name 2	
Is the Owner a Resident Owner ? (see Clause 1)	☐ Yes ☒ No

NOTE: The **Owner** may have a right to withdraw from the **Contract** during the Cooling-Off Period under section 35 of Schedule 1B of the **Act** (see Clause 2 of the **Contract**).

ITEM 3 - CONTRACTOR (Clause 1)

Name	Thomas K Ingram		
Trading as	Rextek metal roofing		
ABN	23 636 421 308	QBCC licence number	15129399
Is the Contractor a member of Master Builders Queensland?			☒ Yes ☐ No

Initial
T. I

Initial
SKS

ITEM 4 - DESCRIPTION OF WORKS (Clause 1)Description of the **Works** to be performed under the **Contract**
☒ in accordance with the Contractor's Scope of Works/Quotation ☐ as described below

(attach and describe any drawings or site plans that are being relied upon)

Excluded Items**ITEM 5 - LAND** (Clause 1)

Address 18 Frank Street Kirwan QLD 4817

Lot no.

Plan type (e.g. RP)

Local government

ITEM 6 - SUPPLIER OF DOCUMENTS (Clause 1)(a) **Drawings** Supplied by ☒ **Contractor** ☐ **Owner**(b) **Specifications** Supplied by ☒ **Contractor** ☐ **Owner**(c) **Foundations Data** Supplied by ☒ **Contractor** ☐ **Owner**

NOTE: Unless s31(3) of Schedule 1B of the **Act** applies, the **Foundations Data** must be obtained before entering into the **Contract**. If the **Contractor** is required to obtain such data, a copy must be given to the **Owner** on payment of the **Contractor's** costs incurred in obtaining the data.

DRAWINGS

Drawing No.	Version	Date	Prepared by	Brief description of drawing

SPECIFICATIONS

Specifications

OTHER DOCUMENTS

Other Documents

ITEM 7 - CONTRACTOR'S MARGIN (Clause 1)**Contractor's Margin** (if nothing stated, 20%)**ITEM 8 - DATE FOR COMMENCEMENT** (Clauses 1 and 7.1)**Date for Commencement** 20/05/2026To be determined under Clause 7.1(b) *not selected***ITEM 9 - CONSTRUCTION PERIOD** (Clause 1)**Construction Period** (in Days) 90 Days
Initial
T. I

Initial
SKS



ITEM 10 - DATE FOR PRACTICAL COMPLETION (Clauses 1 and 8.1)

Date for Practical Completion	not selected
The date that is the last Day of the Construction Period from the Date for Commencement	☐ (tick if applicable)

ITEM 11 - PRIME COST ITEMS/PROVISIONAL SUM ITEMS (Clause 3)

Are there any Prime Cost Items or Provisional Sum Items relating to the Works?	☐ Yes ☒ No
(if yes, provide details)	

PRIME COST ITEMS

Description of each Prime Cost Item	Quantity	Allowance* per unit (GST inclusive)	Total allowance* for the Prime Cost Item (GST inclusive)
This is to be read in conjunction with Clause 1 of the Contract .		*The Allowance stated does not include the Contractor's Margin	
(The allowances* for Prime Cost Items are included in Item 1(a) of the Schedule)			

PROVISIONAL SUM ITEMS

Description of each Provisional Sum Item	Total allowance* for the Provisional Sum Item (GST inclusive)
This is to be read in conjunction with Clause 1 of the Contract.	
*The Allowance stated does not include the Contractor's Margin	
(The allowances* for Provisional Sum Items are included in Item 1(a) of the Schedule)	

ITEM 12 - BUILDING APPROVAL (Clause 7.3)

Party responsible for obtaining building approval	☒ Contractor ☐ Owner
(if nothing stated, the Contractor)	

NOTE: The Owner is responsible for obtaining all development approvals if applicable to the Works.

ITEM 13 - PROGRESS CLAIMS (Clauses 13.1 and 13.2)

WARNING: The Contractor must not claim an amount under the Contract unless it directly relates to the progress of the Works at the Site, and is proportionate to the value of the work that relates to the claim.
NOTE: The maximum Deposit cannot be more than 5% of the Contract Price, if the Contract Price is equal to or more than \$20,000 (incl GST), or 10% if the Contract Price is less than \$20,000, unless the value of off-site work is more than 50% of the Contract Price, in which case the maximum Deposit cannot be more than 20% of the Contract Price.
NOTE: QBCC Home Warranty Insurance Premium paid on the Owner's behalf is not a taxable supply for the Contractor.

Name of Stage and Description of Stage	% of Contract Price	\$ Value (GST inclusive)
Deposit: QBCC Home Warranty Insurance Premium (where applicable)	1.0482807%	\$571.65
Balance of Deposit (i.e. Deposit less QBCC HWI where applicable)	-1.0482807%	-\$571.65
Stage 1.	0%	\$0.00
Practical Completion	100.0000000%	\$54,532.15
TOTAL	100%	\$54,532.15

Initial
T. I

Initial
SKS



ITEM 14 - PAYMENT PERIOD (Clause 13.3)	
Time for payment after the Submission Date	Business Days
(if nothing stated, within 2 Business Days)	

ITEM 15 - INTEREST (Clause 13.6)	
Interest rate	per annum
(if nothing stated, 10% per annum, calculated on daily basis)	

ITEM 16 - SPECIAL CONDITIONS (Clause 22)		
Are there any Special Conditions forming part of the Contract ?		☐ Yes ☒ No
(if yes, complete table below)		
Special Condition No.	General Condition affected	Details
Any Special Conditions in addition to, or in amendment of, the General Conditions must be set out above. (Number each Special Condition for example, SC1, SC2, or if applicable, refer to the specific Clause in the General Conditions affected).		

Initial
T. I

Initial
SKS



Basic Works Contract (Residential)

AGREEMENT

The **Contractor** and the **Owner** agree that the **Contractor** is to carry out and complete the **Works**, and the **Owner** is to pay the **Contractor** the **Contract Price**, as adjusted under the **Contract**, for the **Works** in accordance with the provisions of the **Contract**.

Signed by, or for and on behalf of, the OWNER			
Name 1	Shishir kaji shrestha		
Name 2			
Address	18 Frank Street Kirwan QLD 4817		
ABN/ACN			
Phone 1	0452445187	Phone 2	
Email address		Facsimile number	

Signature

Signed by:

6FE73B4CC867422...

Printed name

SHISHIR KAJI SHRESTHA

Date

12/5/2026 | 11:04 AEST

Signed by, or for and on behalf of, the CONTRACTOR			
Name	Thomas K Ingram		
Trading as	Rextek metal roofing		
Address	587 Barrilgie Road Coolbie QLD 4850		
ABN	23 636 421 308	QBCC Licence number	15129399
Phone 1	0400436080	Phone 2	0437789765
Email address	Tommyingram87@gmail.com	Facsimile number	

Signature

Signed by:

F15B86C04873483...

Printed name

THOMAS INGRAM

Date

12/5/2026 | 10:24 AEST

WARNING - DO NOT SIGN IF:

- The **Owner** has not been provided with a **Consumer Building Guide** if the **Contract Price** is more than \$20,000 including GST.
- **Foundations Data** has not been obtained (if applicable).
- The **Owner** has not been provided with the General Conditions.

© Copyright Queensland Master Builders Association. All rights are reserved. No part of this publication may be reproduced, copied, stored in a retrieval system, distributed or transmitted in any form, or by any means, including photocopying, scanning or other mechanical or electronic methods without the prior written permission of the copyright holder.

General Conditions - Basic Works Contract (Residential)

1	DEFINITIONS
	<i>NOTE: In the Contract, certain words and phrases used throughout are defined, and are shown in bold when used (e.g. Owner)</i>
	In the Contract , except where the context otherwise requires:
Act	means the <i>Queensland Building and Construction Commission Act 1991</i> ;
Business Day	means a Day that is not: - a Saturday or Sunday; or - a public holiday in the place in which any relevant act is to be or may be done;
Christmas Shutdown	means any Day occurring within the period 22 December to 10 January (inclusive);
Commission	means the Queensland Building and Construction Commission;
Construction Period	means the period stated in Item 9 of the Schedule ;
Construction Works Policy	means a policy of insurance providing indemnity to the Contractor , the Owner , any lender (if so required by the Owner), and the Contractor's subcontractors against liability for physical loss, destruction or damage to the Works , or to materials and goods on or adjacent to the Land ;
Consumer Building Guide	means the Consumer Building Guide published from time to time by the Commission ;
Contract	means these general conditions, any special conditions set out in Item 16 of the Schedule , the Schedule , the Drawings , the Specifications , and anything else annexed to, or incorporated by reference into the Contract ;
Contract Price	means the amount stated in Item 1 of the Schedule , as adjusted from time to time under the Contract ;
Contractor	means the person stated in Item 3 of the Schedule and includes the Contractor's permitted assignees and transferees;
Contractor's Margin	means the margin stated in Item 7 of the Schedule to be applied in accordance with Clauses 3.5 and 6.7 ;
Date for Commencement	means the date stated in, or otherwise determined in accordance with, Item 8 of the Schedule by which the Contractor must commence the Works at the Site ;
Date for Practical Completion	means the date stated in or otherwise determined in accordance with Item 10 of the Schedule , by which the Works are to be brought to Practical Completion , as adjusted from time to time under the Contract ;
Date of Practical Completion	means the date on which the Works reach Practical Completion ;
Days	means calendar days;
Defects Document	means a document that: - lists any minor defects and minor omissions that the Contractor and the Owner agree exist; - states when the Contractor is to remedy the listed agreed minor defects and minor omissions; - lists any minor defects or minor omissions that the Owner claims exist, but that the Contractor does not agree exist; and - is signed by or on behalf of the Contractor;
Defects Liability Period	means the period commencing on the Day following the Date of Practical Completion , and ending on the Day twelve (12) months after the Date of Practical Completion ;
Deposit	means the amount stated in Item 13 of the Schedule to be paid by the Owner to the Contractor in accordance with Clause 6.2 ;
Direction	includes, but is not limited to, any agreement, approval, authorisation, certificate, decision, demand, determination, explanation, instruction, notice, order, permission, rejection, request or requirement;
Drawings	means the plans (including, but not limited to, elevations, sections and details) and designs relating to the Works , described in Item 6 of the Schedule ;
Engineer Specification and Confirmation	is a document, published by Master Builders Queensland and purchased by the Contractor , required under the Contract to be signed by the Registered Professional Engineer of Queensland providing the design of any footings or slabs for the Works ;
Excluded Items	means those items stated in Item 4 of the Schedule to be excluded from the Works ;
Final Claim	means a claim for payment made in accordance with Clause 13.2 ;

Initial
T. I

Initial
SKS

Foundations Data	means the information about the Land a building contractor exercising reasonable care and skill needs for the preparation of an appropriate footings design for the Land and, if appropriate, a concrete slab design for the Land , and an adequate estimate of the cost of constructing the footings and, if appropriate, concrete slab;
Holding Account	means any account maintained by Master Builders Queensland with a financial institution for the purpose of holding amounts in accordance with the Master Builders Holding Account Conditions as amended from time to time;
Inclement Weather	means the existence of weather conditions, including, but not limited to, rain, wind, heat, cold, humidity, hail, snow, sleet, dew, fog, storm, dust, or flood, and their after-effects which have an adverse impact on the diligent, usual or safe carrying out of the Works by the Contractor or the Contractor's subcontractors;
Land	means the land described in Item 5 of the Schedule on which the Works are to be carried out;
Latent Condition	means any physical condition, including artificial things, on or around the Land , including surface and subsurface conditions, which differ materially from the physical conditions reasonably expected by the Contractor at the date of the formation of the Contract ;
Owner	means the person stated in Item 2 of the Schedule and includes the Owner's permitted assignees and transferees;
Possession	means when the Works , or any part of the Works , are taken over, occupied or used by the Owner or the Owner's employees, other contractors or agents;
Practical Completion	means that stage of the Works when: - the Works are completed in compliance with the Contract, including all Drawings and Specifications, and all statutory requirements applying to the Works, without any defects or omissions other than minor defects or minor omissions that will not unreasonably affect occupation; and - if the Owner claims there are minor defects or minor omissions, the Contractor gives the Owner a Defects Document for the minor defects or minor omissions;
Prime Cost Item	means an item (for example, a fixture or fitting) that either has not been selected, or the price of which is not known, at the date of the formation of the Contract , and for the cost of supply and delivery of which the Contractor has made a reasonable allowance in the Contract , and which is identified in the Schedule as a Prime Cost Item;
Progress Claim	means a claim for payment made in accordance with Clause 13.1;
Provisional Sum	means an estimate of the cost of carrying out particular work (including the cost of supplying any materials needed for the work) under the Contract for which the Contractor , after having made all reasonable enquiries, could not state a definite amount at the time of the formation of the Contract , and which is identified in the Schedule as a Provisional Sum;
Resident Owner	means an Owner who is an individual and intends to reside in the building on completion of the Works or within six (6) months after completion of the Works ;
Schedule	means the Schedule contained in the Contract ;
Site	means that part of the Land necessary to be occupied and used by the Contractor for the construction of the Works ;
Specifications	means the specifications relating to the Works described in Item 6 of the Schedule ;
Stage	means the stages stated in the Item 13 of the Schedule ;
Statutory Requirements	includes, but is not limited to, any legislation, delegated (including, but not limited to, subordinate) legislation, permit, approval, or other law or legal requirement, and any Direction from, or requirement of, a local government or other entity (including, but not limited to, a building certifier and the Commission) having jurisdiction over the carrying out of the Works ;
Submission Date	means the date on which the Contractor submits (as the case may be) a Progress Claim or the Final Claim to the Owner ;
Substantial Breach	means a party's failure or refusal to perform a substantial obligation under the Contract (such as, for example, the Owner's failure to make payment on time);
Tribunal	means the Queensland Civil and Administrative Tribunal established under the <i>Queensland Civil and Administrative Tribunal Act 2009</i> ;
Variation	means to vary the Works by agreement as set out in Clause 12 or as deemed or otherwise provided under the Contract ;

Initial
T. I

Initial
SKS

Variation Document	means a document that is: • readily legible; • describes the Variation and sets out the details of the scope of work which is the subject of the Variation; • states the date of the request for the Variation; • states the Contractor's estimate of any period of delay to the progress of the Works as a result of the Variation; • states any adjustment to the Contract Price because of the Variation, or the method for calculating the adjustment; and • states when any adjustment to the Contract Price because of the Variation is to be: • accounted for, if the Variation results in a decrease to the Contract Price; or • paid, if the Variation results in an increase to the Contract Price;
WHS Act	means (separately and together) the <i>Work Health and Safety Act 2011</i> (Qld) as amended from time to time and includes related Acts and Regulations;
WHS Management Plan	means a document prepared by the Contractor in respect of the Works which sets out the way in which the Works are to be carried out in order to comply with the WHS Act ; and
Works	means the whole of the work to be carried out by the Contractor under the Contract, a description of which is contained in Item 4 of the Schedule and includes: • supply and installation of Prime Cost Items (if applicable); • carrying out Provisional Sum Items (if applicable); • Variations (if any); and • installation of Owner supplied items (if applicable); but excludes the Excluded Items.
2 COOLING-OFF PERIOD	
2.1	Subject to Clauses 2.2 and 2.3 , the Owner may withdraw from the Contract :
a)	within five (5) Business Days after receiving a copy of the signed Contract and the Consumer Building Guide ; or
b)	within five (5) Business Days after receiving the Consumer Building Guide if the Owner did not receive the Consumer Building Guide prior to receiving a copy of the signed Contract ; or
c)	if five (5) Business Days have elapsed from the date of the formation of the Contract and the Owner has not received from the Contractor a copy of the signed Contract or the Consumer Building Guide or both.
2.2	In order to withdraw from the Contract under Clause 2.1 or section 35 of Schedule 1B of the Act , the Owner must give a signed written notice to the Contractor stating that the Owner withdraws from the Contract , and the section of Clause 2.1 or Schedule 1B of the Act , as applicable, under which the withdrawal is made, within the time allowed under that section for the withdrawal.
2.3	The Owner may not withdraw from the Contract if:
a)	the Owner and the Contractor have previously entered into a contract relating to the same detached dwelling, home or Land on substantially the same terms as the Contract ; or
b)	the Owner has received <i>formal legal advice</i> about the Contract before entering into the Contract ; or
c)	on, or after, the date of the formation of the Contract , the Owner tells the Contractor that the Owner received <i>formal legal advice</i> about the Contract before entering into the Contract .
2.4	Consequences of withdrawal:
a)	The following provisions of Clause 2.4 only apply if the Owner withdraws from the Contract in accordance with this Clause 2 or section 35 of Schedule 1B of the Act .
b)	The Owner must pay the Contractor an amount of \$100 plus any out-of-pocket expenses reasonably incurred by the Contractor under the Contract before the Owner withdrew from the Contract . If the Owner has paid the Contractor more than that amount under the Contract before the Owner withdrew from the Contract , the Contractor must refund the excess to the Owner .
c)	Any amounts due under this Clause 2.4 must be paid on written demand for such amounts and will be deemed to be a debt due and payable to the party entitled to that amount by the other party.
2.5	In this Clause, <i>formal legal advice</i> means independent advice given by a lawyer authorised under a law of Queensland to practise as a lawyer for purposes including the giving, for reward, of advice, including, for example, advice about domestic building contracts, and for the giving of which an amount is paid, or is payable, to such a lawyer by the Owner .

Initial
T. I

Initial
SKS

3 PRIME COST ITEMS AND PROVISIONAL SUM ITEMS

- 3.1 If the **Contract** includes any **Prime Cost Items** or **Provisional Sum Items**, the **Owner** must give to the **Contractor** all necessary written and signed **Directions** requested by the **Contractor** regarding the selection or supply of the item or work represented by a **Prime Cost Item** or **Provisional Sum Item** within five (5) **Business Days** of the **Contractor's** request.
- 3.2 If any **Prime Cost Item** selected by the **Owner** is unavailable or will, in the opinion of the **Contractor**, unduly delay the progress of the **Works**, the **Owner** must specify in writing to the **Contractor** an alternative item within five (5) **Business Days** of the **Contractor's** request to do so.
- 3.3 If the **Owner** fails to comply with Clause 3.2, the **Contractor** may select and supply a reasonable alternative item to the originally selected **Prime Cost Item** in terms of quality.
- 3.4 If the actual cost of a **Prime Cost Item** or of a **Provisional Sum Item** is less than the total amount allowed for that item in the **Contract**, the difference between the two amounts is to be deducted from the **Contract Price** and included in the next or any later **Progress Claim** or the **Final Claim**.
- 3.5 If the actual cost of a **Prime Cost Item** or of a **Provisional Sum Item** exceeds the total amount allowed for that item in the **Contract**, the excess amount plus the **Contractor's Margin** on that excess is to be added to the **Contract Price** and included in the next or any later **Progress Claim** or the **Final Claim**.

4 INSURANCE

- 4.1 The **Contractor** must take out and maintain all policies of insurance, including, for example, WorkCover in respect of its workers, required to be taken out and maintained by the **Contractor** by a **Statutory Requirement** relating to the **Works**.
- 4.2 The **Contractor** must take out and maintain a **Construction Works Policy** for the full insurable value of the **Works** from the **Date for Commencement** until the **Date of Practical Completion** or the date the **Owner** takes **Possession** of the **Works**, whichever is earlier. The **Construction Works Policy** must note the **Contractor** as an 'Insured', and the **Owner** and any lender (if requested by the **Owner**) as 'Insureds' or 'Interested Parties', under the policy.
- 4.3 The **Contractor** must take out and maintain a public liability insurance policy for an amount not less than \$10 million for any one occurrence from the **Date for Commencement** until the expiration of the **Defects Liability Period**. The public liability insurance policy must cover the **Contractor** and the **Owner** for their liabilities to third parties and each other in respect of personal injury to, or death of, any person (other than liability which is required by law to be insured under a workers compensation policy of insurance), and loss or damage to property except the **Works**, arising out of, or in connection with, the **Works**. The public liability policy must note the **Contractor** and the **Owner** as 'Insureds' under the policy.
- 4.4 To the maximum extent permitted by law, the **Contractor** is not liable, and does not provide any indemnity, to the **Owner**, the **Owner's** employees or agents, or any other person for whom the **Owner** is responsible for any injury or death to any person, or loss or damage to any property, which arises as a result of any act or omission by the **Owner**, or any person for whom the **Owner** is responsible, and in respect of such claims the **Owner** must indemnify the **Contractor**.
- 4.5 The **Owner** must comply with the following:
- a) the **Owner** must insure the **Works** from the **Date of Practical Completion** or the date the **Owner** takes **Possession** of the **Works**, whichever is earlier;
 - b) if the **Works** involve the alteration, addition to, or repair of an existing building, then the **Owner** must take out and maintain an insurance policy for the duration of the **Contract** which provides cover for the full replacement value of any existing building, and the contents of such building, against any loss or damage. If the **Contractor** gives a written notice requesting to view the policy of insurance, the **Owner** must make available for the **Contractor** to view the current policy of insurance within five (5) **Business Days** after the giving of the notice; and
 - c) if the **Works** do not involve the alteration, addition to, or repair of an existing building, but existing buildings are on the **Land**, then the **Owner** must take out and maintain an insurance policy for the duration of the **Contract** which provides cover for the full replacement value of any existing building, and the contents of such building, against any loss or damage. If the **Contractor** gives a written notice requesting to view the policy of insurance, the **Owner** must make available for the **Contractor** to view the current policy of insurance within five (5) **Business Days** after the giving of the notice.

Initial
T. I

Initial
SKS

5 CONTRACTOR'S WARRANTIES

- 5.1** The **Contractor** warrants that the **Contractor** will carry out the **Works**:
- in an appropriate and skilful way;
 - with reasonable care and skill;
 - in accordance with the **Drawings** and the **Specifications**;
 - with reasonable diligence; and
 - in accordance with all relevant laws and legal requirements, including, for example, the *Building Act 1975* and the National Construction Code.
- 5.2** If the **Works**:
- consist of the erection or construction of a detached dwelling; or
 - are intended to renovate, alter, extend, improve or repair a home,
- to a stage suitable for occupation, the **Contractor** warrants that the detached dwelling or home will be suitable for occupation when the **Works** are finished.
- 5.3** The **Contractor** warrants that any estimate for the cost of a **Prime Cost Item** or **Provisional Sum** provided for in the **Contract** has been calculated with reasonable care and skill having regard to all the information, including information about the nature and location of the **Land**, reasonably available at the date of the formation of the **Contract**.
- 5.4** Subject to Clause 5.5, the **Contractor** warrants that all materials to be supplied by the **Contractor** for use in the **Works**:
- will be good and, having regard to generally accepted practices or standards applied in the building industry for the materials, or the specifications, instructions or recommendations of manufacturers or suppliers of the materials, suitable for the purpose for which they are used; and
 - unless expressly stated otherwise elsewhere in the **Contract** or the parties have agreed in writing otherwise, will be new.
- 5.5** Clause 5.4 does not apply for materials if:
- an architect is the **Owner's** agent, or the **Contract** is being administered by an architect engaged by the **Owner**, and the **Contractor** is subject to the **Direction** of the architect for supplying the materials that are to be supplied by the **Contractor**; or
 - the **Owner** is responsible for specifically nominating the materials to be supplied by the **Contractor** for use in the **Works** without any recommendation, representation, suggestion or other approach having been made to the **Owner** by the **Contractor**:
 - supporting, or approving, the use of the materials; or
 - criticising, or disapproving the use of, other materials that could be considered to be appropriate for use for the purpose for which the materials nominated by the **Owner** are to be used,

and there are no reasonable grounds for not using the materials or, if there are reasonable grounds for not using the materials, the **Owner** insists on the materials being used despite written advice to the contrary given to the **Owner** by the **Contractor**.

6 OWNER'S OBLIGATIONS

- 6.1** The **Owner** must pay the **Contractor** the **Contract Price** in accordance with the **Contract**.
- 6.2** The **Owner** must pay the **Deposit** to the **Contractor** on the date of the formation of the **Contract**.
- 6.3** If the **Owner** supplies any documents or **Foundations Data** to the **Contractor**, the **Owner**:
- warrants that the documents or data are, or will be, accurate, suitable for the purposes for which they will be used and appropriate in all respects for the **Land** (including the **Site**);
 - warrants that the documents or data comply with all **Statutory Requirements** relating to the **Works**;
 - warrants that all consents, approvals and permits necessary for the lawful commencement of, and the carrying out of, the **Works** have been obtained, and all related fees and charges have been paid, except to that extent which any such necessary consent, approval or permit is expressly required to be obtained and paid for by the **Contractor** under the **Contract**;
 - warrants that it is, and will continue to be, reasonable for the **Contractor** to rely on the documents or data;
 - must supply a sufficient number of copies to enable the **Contractor** to perform the **Works**, and to obtain necessary approvals if the **Contractor** is required to do so under the **Contract**; and
 - must have the **Owner's** engineer (who must be a Registered Professional Engineer of Queensland) sign the **Engineer Specification and Confirmation** on the date of the formation of the **Contract**, if applicable.
- 6.4** The **Owner** must not obstruct, interfere with or hinder the carrying out of the **Works**. The **Owner** must take all reasonable steps to prevent all others from obstructing, interfering with or hindering the carrying out of the **Works**. If the **Owner** or any person on **Site** at the request of or under instructions from the **Owner** obstructs, interferes with or hinders the carrying out of the **Works**, the **Owner** must indemnify the **Contractor** against the consequences of any delay, and any additional costs incurred by the **Contractor** as a result.

Initial
T. I

Initial
SKS

6.5	The Owner must: a) comply with the Directions of the Contractor given for work, health and safety at the Site; b) ensure that any person at the Site at the request of or under the instruction of the Owner complies with the Directions of the Contractor given for work, health and safety at the Site; c) not wilfully or recklessly interfere with or misuse anything provided for work, health and safety at the Site; d) not wilfully place at risk the health and safety of any person at the Site; e) not wilfully injure oneself; and f) only attend the designated construction areas at the Site whilst supervised by the Contractor.
6.6	The Owner is responsible for, including all costs associated with, the conveying, connection and installation of all services and facilities being brought to the Land for connection to the Works . These services and facilities include, but are not limited to, for example: gas, sewerage, storm water, water, electricity, telephone and National Broadband Network. The Contractor is responsible for services connected from the boundary of the Land to the Works , except that the Owner is responsible if agreed otherwise elsewhere in the Contract or any existing services need to be upgraded or changed.
6.7	The Owner is responsible for the Site being accessible by any persons, vehicles or machinery reasonably necessary for the carrying out of the Works . If the Site becomes inaccessible or access is restricted due to any reason beyond the control of the Contractor , any costs incurred by the Contractor in obtaining sufficient access to the Site , together with the Contractor's Margin applied to those costs, is to be added to the Contract Price and included in the next or any later Progress Claim or the Final Claim .
6.8	The Owner is responsible for locating the position and depth of all underground services that may be necessary for the Contractor to carry out the Works .
7	COMMENCEMENT
7.1	The Contractor must commence the Works at the Site : a) if a date is stated in Item 8 of the Schedule as the Date for Commencement, on or before that date; or b) if the Date for Commencement is stated in Item 8 of the Schedule to be determined under this Clause 7.1(b), then within ten (10) Business Days of the Contractor receiving all of the following: i) the approvals and consents required by the Contract to be given by the Owner; ii) satisfactory evidence of the Owner's capacity to pay the Contract Price; iii) the Owner has complied with the requirements of Clause 6.7 and 6.8 to the satisfaction of the Contractor; and iv) the Owner has paid the Deposit.
7.2	Within ten (10) Business Days of starting the Works at the Site , the Contractor must give a commencement notice, signed by the Contractor , to the Owner stating: a) the date the Contractor started the Works at the Site; and b) the Date for Practical Completion.
7.3	The party stated in Item 12 of the Schedule must promptly take all reasonable steps, and pay any relevant fee, to obtain the necessary building approval to commence the Works .
8	PRACTICAL COMPLETION
8.1	The Contractor must bring the Works to Practical Completion by the Date for Practical Completion .
8.2	On reaching Practical Completion , the Contractor must give to the Owner : a) a written notice stating the date that the Works reached Practical Completion; and b) if the Owner claims that there are minor defects in, or minor omissions from, the Works, a Defects Document.
8.3	The Contractor must remedy any agreed minor defects and minor omissions set out in any Defects Document within the times stated in the Defects Document or within a reasonable period if necessary materials or labour are unavailable or the Contractor has a reasonable excuse.
8.4	Unless the Owner has obtained the Contractor's prior written consent, the Owner must not take Possession of the Works , nor is the Owner entitled to the keys or other access codes to the Works , prior to making full payment to the Contractor of the Contract Price .
8.5	On full payment by the Owner of the Contract Price to the Contractor , the Contractor must hand over the Works , including the keys or other access codes to the Works , to the Owner .

Initial
T. I

Initial
SKS

- 8.6** If the **Owner** wishes to take **Possession** of the **Works** but disputes any part of the **Contract Price** claimed by the **Contractor**, and the **Contractor** is a member of Master Builders Queensland:
- the **Owner** may pay the disputed amount into the **Holding Account**;
 - the **Owner** is to then give the **Contractor** a receipt showing the disputed amount has been deposited into the **Holding Account** and pay any undisputed amount to the **Contractor**;
 - upon receiving the receipt and payment (if any), the **Contractor** is to hand over the **Works**, including the keys and access codes to the **Works**, to the **Owner**; and
 - the **Owner** agrees to take all steps necessary to enable Master Builders Queensland to release money received into the **Holding Account** under this Clause in accordance with the Master Builders Holding Account Conditions applicable at the time of the deposit.
- 8.7** If the **Owner** takes **Possession** of the **Works** when not entitled to do so under the **Contract**, the **Works** are deemed to have reached **Practical Completion** without any defects or omissions on the **Day** that the **Owner** takes **Possession**, and the **Owner** is liable to the **Contractor** for any loss or damage that the **Contractor** may incur or suffer as a result.
- 9 DELAYS AND EXTENSION OF TIME CLAIMS**
- 9.1** Subject to Clause **9.2**, the **Contractor** is entitled to an extension of the **Date for Practical Completion** if the progress of the **Works** is delayed as a result of any of the following causes:
- a **Variation**;
 - a failure by the **Owner** to give to the **Contractor** a written notice agreeing to a **Variation** in accordance with Clause **12**;
 - an act or omission of the **Owner**, the **Owner's** consultants, agents or other contractors;
 - a **Latent Condition**;
 - a breach of the **Contract** by the **Owner**;
 - a lawful suspension of the **Works** (including a suspension under Clause **10**);
 - claims or proceedings being taken, or threatened to be taken, by, or disputes with, a third party that did not arise as a result of any breach by the **Contractor** of the **Contract**;
 - proceedings being taken, or threatened by, or disputes with, adjoining neighbouring owner or occupier that did not arise as a result of any breach by the **Contractor** of the **Contract**;
 - an act of prevention by the **Owner** not otherwise covered by this Clause;
 - Inclement Weather**, or any conditions arising as a direct or indirect consequence resulting from **Inclement Weather**;
 - industrial action or civil commotion affecting the **Works**, any persons employed in respect of the **Works**, or the manufacture or supply of materials for the **Works**;
 - the unavailability of any labour (whether under a subcontract or a contract of employment) necessary for the **Contractor** to carry out the **Works** with reasonable diligence;
 - the unavailability of any materials necessary to carry out the **Works**; or
 - any other cause not reasonably foreseeable at the date of the formation of the **Contract**, and beyond the reasonable control of the **Contractor**.
- 9.2** If, at any time prior to the **Works** reaching **Practical Completion**, the **Contractor** believes that the progress of the **Works** was, or will be delayed, as a result of a cause set out in Clause **9.1** and the delay causing the need for the extension of the **Date for Practical Completion** was:
- not reasonably foreseeable and beyond the reasonable control of the **Contractor**; or
 - caused by the **Owner**; or
 - caused by a **Variation** complying with Clause **12**,
- the **Contractor** must, within ten (10) **Business Days** of the **Contractor** becoming, or ought reasonably to have become, aware of the cause and extent of the delay, give to the **Owner** a written claim, signed by or on behalf of the **Contractor**, for a reasonable extension of the **Date for Practical Completion** that sets out the cause and consequences of the delay.
- 9.3** Within ten (10) **Business Days** after receiving the **Contractor's** written claim for an extension of the **Date for Practical Completion**, the **Owner** must assess the claim and give written notice to the **Contractor**:
- accepting the claimed extension of the **Date for Practical Completion**; or
 - if the **Owner** disputes the **Contractor's** entitlement to all or any part of the claimed extension of the **Date for Practical Completion**, give the **Contractor** a written notice:
 - stating that the **Owner** disputes the claimed extension of the **Date for Practical Completion**;
 - setting out full details of the **Owner's** reasons for the dispute; and
 - granting any part of the claimed extension of the **Date for Practical Completion** that is not disputed by the **Owner**.

Initial
T. I

Initial
SKS

9.4	If the Owner accepts the Contractor's claim for an extension of the Date for Practical Completion , in whole or in part, in accordance with Clause 9.3, the Contractor must, within five (5) Business Days of the Owner's acceptance, give to the Owner a signed copy of the accepted claim for an extension of the Date for Practical Completion .
9.5	If the Owner fails to give written notice in accordance with Clause 9.3, or gives notice rejecting the whole or any part of the Contractor's claim for an extension of the Date for Practical Completion , then the dispute arising as a result is to be resolved in accordance with Clause 18.
10	SUSPENSION OF THE WORKS
10.1	If, at any time prior to the Works reaching Practical Completion , the Owner is in Substantial Breach of the Contract , the Contractor may, without prejudice to any of the Contractor's other rights or remedies, suspend performance of the Works by written notice to the Owner . The Contractor must recommence the carrying out of the Works within ten (10) Business Days of the alleged breach or breaches or failures set out in the suspension notice being remedied by the Owner . Any notice given, or suspension of the Works , under this Clause by the Contractor is without prejudice to any right of the Contractor to terminate the Contract for breach or repudiation of the Contract by the Owner and is not an affirmation of the Contract .
11	DEFECTS LIABILITY PERIOD
11.1	If, after the Works have reached Practical Completion but prior to the expiration of the Defects Liability Period , the Owner becomes aware of any defects in, or omissions from, the Works , the Owner must give the Contractor a written notice setting out full details of the defects or omissions.
11.2	To avoid doubt, no part of the Contract Price is to be retained by the Owner during the Defects Liability Period .
11.3	Subject to reasonable access being provided, the Contractor must, within the Defects Liability Period and, if reasonably required by the Contractor , a further period of twenty (20) Business Days after the expiration of the Defects Liability Period , rectify any defects in, and omissions from, the Works notified to the Contractor in accordance with Clause 11.1, during usual business hours and at no cost to the Owner . The Contractor is not responsible for rectifying any alleged defects or omissions which arise from the fact that something is still to be supplied or done by the Owner , or which relate to the maintenance of an item which is still to be performed by the Owner or is the responsibility of the Owner .
12	VARIATIONS
12.1	Either party may request a Variation .
12.2	The Contractor may, at its discretion, agree to any Variation requested by the Owner but it is not obliged to do so.
12.3	The Works may be varied so as to: a) increase, decrease, omit or change any part of the Works; b) comply with a change to a Statutory Requirement; and/or c) overcome any Latent Condition that affects the Contractor's performance of the Works.
12.4	Within five (5) Business Days of the parties agreeing to a Variation , and before any work the subject of the Variation is started, the Contractor must provide the Owner with a Variation Document .
12.5	The Owner must give to the Contractor a written notice agreeing to the Variation within five (5) Business Days after receiving the Variation Document provided by the Contractor under Clause 12.4.
12.6	The Contractor must not start to carry out any work which is the subject of a Variation until the Contractor receives the written notice from the Owner under Clause 12.5 agreeing to the Variation .
12.7	Where a Variation results in an increase to the Contract Price , the Owner must pay the Contractor the amount of the increase in accordance with the time stated in the Variation Document .
12.8	The Contractor is under no obligation to start to carry out any work which is the subject of a Variation until such time as the Owner provides satisfactory evidence to the Contractor , if requested, that the Owner has the financial capacity to pay for the Variation if requested by the Contractor .
12.9	Notwithstanding any other clause of the Contract , the Contractor is not required to give the Owner a copy of the Variation Document before starting the work which is the subject of the Variation if that work is required to be carried out urgently and it is not reasonably practicable, in the particular circumstances, to do so.

Initial
T. I

Initial
SKS

13 PAYMENT

- 13.1** In relation to progress claims:
- a) the **Contractor** may submit a **Progress Claim** to the **Owner** on completion of the **Stages** set out at Item 13 of the **Schedule**; and
 - b) the **Progress Claim** must set out:
 - i) details of:
 - A) the **Stage** that has been completed and/or the work that has been carried out by the **Contractor** to which the **Progress Claim** relates;
 - B) the amount that the **Contractor** claims for payment by the **Owner** for that work; and
 - C) any other amount arising out of, or in connection with, the **Contract** that the **Contractor** claims for payment by the **Owner**; and
 - ii) the total amount that the **Contractor** claims for payment by the **Owner**, and be in the form of a tax invoice.
- 13.2** No later than fifteen (15) **Business Days** after the expiration of the **Defects Liability Period**, the **Contractor** may submit a **Final Claim** to the **Owner** that sets out:
- a) the total amount of the **Progress Claims** submitted by the **Contractor** to the **Owner** under Clause 13.1;
 - b) the total amount of the payments made by the **Owner** to the **Contractor** under the **Contract** up to and including the date on which the **Contractor** submits the **Final Claim**;
 - c) details of:
 - i) any work carried out by the **Contractor** to which the **Final Claim** relates;
 - ii) any amount that the **Contractor** claims for payment by the **Owner** in respect of any such work; and
 - iii) any other amount arising out of, or in connection with, the **Contract** that the **Contractor** claims for payment by the **Owner**; and
 - d) the total amount that the **Contractor** claims for payment by the **Owner** in the **Final Claim**, and be in the form of a tax invoice.
- 13.3** Upon receipt of a **Progress Claim** or the **Final Claim**, the **Owner** must pay to the **Contractor** the total amount of the **Progress Claim** or the **Final Claim** by no later than the time stated in Item 14 of the **Schedule**, unless the **Owner** disputes the **Progress Claim** or the **Final Claim** in accordance with Clause 13.4.
- 13.4** If the **Owner** disputes all or any part of the total amount of a **Progress Claim** or the **Final Claim**, the **Owner** must:
- a) give the **Contractor** a written notice of dispute in accordance with Clause 18.1 setting out the amount in dispute and details of the dispute by the time stated in Item 14 of the **Schedule** or the date ten (10) **Business Days** after the **Submission Date**, whichever is the earlier; and
 - b) pay to the **Contractor** the amount of the **Progress Claim** or the **Final Claim** that is not disputed by the **Owner** by the time stated in Item 14 of the **Schedule**.
- 13.5** If the **Owner** fails to give the **Contractor** a notice in relation to a **Progress Claim** in accordance with Clause 13.4, the **Owner** must pay to the **Contractor** the total amount of the **Progress Claim** without any deduction. If the **Owner** fails to give the **Contractor** a notice in relation to the **Final Claim** in accordance with Clause 13.4, the **Owner** must pay to the **Contractor** the total amount of the **Final Claim** without any deduction and the parties agree that the **Works** have been carried out and completed in accordance with the **Contract**.
- 13.6** If the **Owner** fails to make any payment due to the **Contractor** under the **Contract** on or before the time stated in Item 14 of the **Schedule**:
- a) the **Contractor** is entitled to interest on the outstanding amount at the rate stated in Item 15 of the **Schedule**, payable from the **Day** after the date that payment was due until the date of payment; and
 - b) the **Owner** must pay to the **Contractor** any debt collection costs, including any legal costs on a full indemnity basis, associated with recovering, or the attempted recovery of, the outstanding amount.
- 13.7** Payment, other than payment of the **Final Claim**, is payment on account only.
- 13.8** The **Owner** has no right to deduct any amount from moneys owing to the **Contractor** under Clause 13 including any moneys due to the **Owner** from the **Contractor** under the **Contract**.
- 13.9** In the event that the **Contract** is terminated for any reason, a reference date for the purposes of a **Progress Claim** arises on the date of termination.

14 RIGHTS TO TERMINATE CONTRACT

- 14.1** If either party:
- a) fails to make a payment under the **Contract**;
 - b) is otherwise in **Substantial Breach** of the **Contract**,
- the party not in default may give a written notice to the defaulting party by hand or registered "Priority" post:
- c) describing each alleged breach of the **Contract** by the defaulting party; and
 - d) stating the non-defaulting party's intention to terminate the **Contract** unless the defaulting party remedies the alleged breach or breaches within ten (10) **Business Days** after receiving the non-defaulting party's notice.

Initial
T. I

Initial
SKS

- 14.2** If the defaulting party fails to remedy the breach or breaches set out in a notice given to it in accordance with Clause **14.1** within the time stated in that notice, the non-defaulting party may, without prejudice to any other rights or remedies, terminate the **Contract** by further written notice to the defaulting party.
- 14.3** If the **Contract** is terminated in accordance with Clause **14.2**, the rights and liabilities of the parties are the same as they would have been at common law had the defaulting party repudiated the **Contract** and the non-defaulting party elected to treat the **Contract** as at an end and recover damages.
- 14.4** A party may not terminate the **Contract** if the party is in **Substantial Breach** of the **Contract**.
- 14.5** If the **Contract** is terminated in accordance with Clause **14.2**, the **Contractor** is entitled to a reasonable remuneration for the unpaid value of that part of the **Works** it carried out under the **Contract** up to, and including, the **Day** on which the **Contract** is terminated and the **Contractor** will have an irrevocable licence (including which survives termination of the **Contract**) to remove from the **Land**, and retain, all unfixed materials, goods, plant and equipment previously provided by the **Contractor** provided such unfixed materials, goods, plant and equipment has not been paid for by the **Owner**.
- 15 TERMINATION FOR INSOLVENCY**
- 15.1** If a party:
- commits an act of bankruptcy, or is made bankrupt;
 - makes a composition or other arrangement with creditors;
 - assigns assets for the benefit of creditors generally; or
 - being a company, becomes insolvent, enters into a deed of company arrangement, has a controller, administrator or receiver appointed, or is in liquidation;
- the other party may, subject to Clause **15.2**, immediately terminate the **Contract** on giving a written notice to the defaulting party setting out the ground or grounds relied on by the other party for the termination.
- 15.2** If the **Contractor** or the **Owner** is a company and enters into certain arrangements for the purpose of avoiding being wound up in insolvency or appoints an administrator, then the right to terminate the **Contract** pursuant to Clause **15.1** may be limited by the *Corporations Act 2001* (Cth).
- 16 NOTICES**
- 16.1** The **Contractor** or the **Owner** must provide to the other party a copy of any:
- report, notice, order or other document given in relation to the **Works** by any supplier of services (such as, for example, gas, electricity, telephone, water and sewerage); and
 - certificate of inspection of the **Works**, as soon as practicable after receipt.
- 16.2** Unless expressly stated otherwise elsewhere in the **Contract**, any written notice, or other document, to be given by a party under the **Contract** is deemed to have been given and received:
- if delivered by hand to the other party, at the time of delivery;
 - if sent by email to the other party at the email address of the other party stated in the **Contract**, or another email address notified by the other party in writing, at the time when the email leaves the information system used by the party which sent the email.
- 16.3** The parties agree that facsimile transmission and email communications from either party to the other constitute an 'electronic communication' as that term is defined in the *Electronic Transactions Act 1999* (Cth) and corresponding State legislation including the *Electronic Transactions (Queensland) Act 2001*.
- 16.4** Unless expressly stated otherwise elsewhere in the **Contract**, the parties agree that any written notice, or other document, to be given by a party under the **Contract** may be given and received via facsimile transmission or email, or both.
- 17 LODGING OF A CAVEAT BY THE CONTRACTOR**
- 17.1** The **Contract** does not give the **Contractor** an interest in the **Land** if the **Owner** is a **Resident Owner**.
- 17.2** If the **Owner** is not a **Resident Owner**, the **Owner**:
- charges the **Owner's** interests in the **Land** with due payment to the **Contractor** of all amounts that may become due to the **Contractor** arising out of, or otherwise in connection with, the **Contract**;
 - must, if requested by the **Contractor**, promptly deliver an executed mortgage in registrable form to secure the charge;
 - consents to the **Contractor** lodging a caveat over all or any part of the **Land** to secure the **Contractor's** interest in the **Land**;
 - must, if requested by the **Contractor**, do all things and sign all documents necessary to enable the **Contractor** to lodge a caveat; and
 - must pay to the **Contractor**, on demand, all stamp duty and registration fees that are payable or paid on the lodgement, withdrawal or release of any caveat or mortgage under this Clause.

Initial
T. I

Initial
SKS

18 RESOLUTION OF DISPUTES

- 18.1** If a dispute or difference (together referred to as a 'dispute') arises out of, or in connection with, the **Contract**, either party may give the other party a written notice of dispute setting out the details of the dispute, including any amount in dispute. Notwithstanding the giving of a notice of dispute, the parties must, subject to the **Contract**, continue to perform the **Contract**.
- 18.2** Within ten (10) **Business Days** after receiving the notice of dispute, the parties must use their best endeavours to arrange, and participate in, a 'without prejudice' conference between them, or their authorised representatives, in an attempt to resolve the dispute. By agreement between the parties, a dispute arising out of, or in connection with, the **Contract** may be referred to Master Builders Queensland for a 'without prejudice' conference at any time provided that the **Contractor** is a member of Master Builders Queensland.
- 18.3** If the parties fail to resolve all of the dispute during the 'without prejudice' conference, or if the party given the notice of dispute fails to participate in a 'without prejudice' conference in accordance with Clause **18.2**, then the parties may agree to refer all or any part of the dispute to a dispute resolution process administered by the **Commission**.
- 18.4** If the parties fail to resolve the dispute within ten (10) **Business Days** of the receipt of the notice of dispute under Clause **18.1**, then either party may commence legal proceedings in the **Tribunal** or a Court in relation to any part of the dispute that is not resolved.
- 18.5** Nothing in this Clause **18** will prejudice the right of a party to institute legal proceedings to:
- enforce payment under Clause **13**; or
 - for urgent injunctive or declaratory relief in relation to any matter arising out of, or in connection with, the **Contract**.

19 GOODS AND SERVICES TAX

- 19.1** For the purposes of the **Contract**, the terms "ABN", "GST", "GST law", "registered", "tax invoice" and "taxable supply" have the meanings given to them in *A New Tax System (Goods and Services Tax) Act 1999* (Cth).
- 19.2** The **Contractor** warrants that the **Contractor** is:
- the holder of any ABN stated in Item 3 of the **Schedule**; and
 - registered and will continue to be registered until the expiration of the **Defects Liability Period**.
- 19.3** The **Contract Price** includes GST unless noted otherwise.
- 19.4** Where the **Works**, or any part of the **Works**, constitute a taxable supply, the **Contractor** must comply in every respect with GST law.
- 19.5** A **Progress Claim** and the **Final Claim** must be in the form of a tax invoice.

20 HEALTH, SAFETY AND ENVIRONMENTAL PROTECTION

- 20.1** Unless otherwise agreed by the parties, the **Contractor** is engaged by the **Owner** to discharge, in respect of the **Works**, until the **Works** reach **Practical Completion**, or the **Contract** is terminated, the duties of a 'principal contractor' (as defined) under the **WHS Act**.
- 20.2** Without limiting the obligations of the **Contractor** pursuant to the **WHS Act**, the **Contractor**, in respect of the **Works**, must ensure that:
- any person carrying out any part of the **Works** complies with all relevant **Statutory Requirements** in respect of:
 - work, health and safety; and
 - environmental protection; and
 - relevant safety documentation (e.g. **WHS Management Plan**) is prepared in respect of the **Works**.
- 20.3** The **Contractor** may exclude or remove from the **Site** any person (including, but not limited to, the **Owner**, the **Owner's** officers, employees, consultants, agents and contractors, and authorised officers of the lender) whose acts, omissions or other conduct in the **Contractor's** opinion does not meet the requirements of the **Contractor's** safety documentation or the **WHS Act**.

21 MISCELLANEOUS

- 21.1** The **Contract** constitutes the entire agreement between the parties regarding the matters set out in it and supersedes any prior representations, understandings or arrangements made between the parties, whether oral or in writing.
- 21.2** All demolished materials and unfixed building materials supplied by the **Contractor** and not paid for by the **Owner**, are the property of the **Contractor** unless otherwise expressly stated elsewhere in the **Contract**.
- 21.3** The **Contractor** may subcontract any part of the **Works** but is not relieved in doing so from any obligation or liability under the **Contract** or the **Act** for the work that is the subject of any such subcontract.
- 21.4** Neither party may assign the **Contract**, or any right, benefit, obligation, liability or interest under the **Contract**, without the prior written consent of the other party.
- 21.5** Unless expressly stated otherwise elsewhere in the **Contract**, none of the provisions of the **Contract**, or any entitlement, remedy, obligation or liability arising out of, or otherwise in connection with, the **Contract**, may be waived, discharged or released for any reason whatsoever except with the prior written consent of the parties.

Initial
T. I

Initial
SKS

- 21.6** The **Contract** is governed by, and is to be construed in accordance with, the laws of the State of Queensland in the Commonwealth of Australia.
- 21.7** If any provision of the **Contract** is void, voidable, unenforceable or illegal, or has the effect of making another provision of the **Contract** void, unenforceable or illegal, it is to be read down so as to be valid and enforceable or, if it cannot be so read down, the provision (or where possible the offending words) is to be severed from the **Contract** without affecting the validity, legality or enforceability of the remaining provisions (or parts of those provisions) which continue to have effect.
- 21.8** If there is more than one person named as the **Owner** under the **Contract**, their obligations and liabilities are joint and several.
- 21.9** The **Contract** may be executed in counterparts. A counterpart may be a copy of the **Contract** printed from a facsimile or email transmission. All counterparts together are taken to constitute one instrument and will not be binding until executed counterparts are exchanged. A copy of the **Contract** which has been executed by a party may be relied upon by a party to the same extent as if it was an original of the **Contract** executed by the party.
- 21.10** The parties acknowledge that the period covered by the **Christmas Shutdown** are not working days for the **Contractor** unless otherwise agreed.
- 21.11** If the time for making any payment or doing any other act required or permitted by the **Contract** falls on a **Day** which is not a **Business Day**, then the time for making the payment or doing the act is deemed to be the next **Business Day**.
- 22 SPECIAL CONDITIONS**
- 22.1** Any special conditions set out in Item 16 of the **Schedule** form part of the **Contract**. The special conditions prevail over these general conditions to the extent of any inconsistency.

Initial
T. I

Initial
SKS